

21STCV06515 21STCV06515

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Case Number: 21STCV06515 Hearing Date: July 14, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ARMEN TEMURIAN, et al.,

Plaintiffs,

vs.

SATHIYA ARAJ RASIAH, et al.,

Defendant.

Case No.:

21STCV06515

Hearing Date:

July 14, 2026

Hearing Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANTS

SATHIYA AND RAJU RASIAH'S MOTION TO DISMISS FOR FAILURE TO PROSECUTE

Background

On February 18, 2021, Plaintiffs Armen Temurian and Luis Amaya, individually, and dba Vista Network Technologies USA and as Vista Network (jointly, "Plaintiffs") filed this action against Defendants Sathiya Araj Rasiah, aka Raj Milton, aka Milton Rasih, Ask Milton Group, George Akopian, and Raju Rasiah, alleging five causes of action for (1) breach of contract, (2) fraudulent inducement, (3) money had and received, (4) breach of the covenant of good faith and fair dealing, and (5) unfair business practices.

Defendants Milton Rasiah and Raju Rasiah (jointly, "Defendants") now move to dismiss this case for failure to prosecute. Plaintiffs oppose. Defendants replied.

Request for
Judicial Notice

The Court grants
Defendants' request for judicial notice of Exhibits 1, 2, 3, and 4.

Legal Standard

Code of Civil Procedure section 583.310 provides, "[a]n action shall be brought to trial within five years after the action is commenced against the defendant." Pursuant to Code of

Civil Procedure section 583.360, "(a) An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute."

"In computing the time within
which an action must be brought to trial pursuant to this article, there shall

be excluded the time during which any of the following conditions existed: (a) The jurisdiction of the court to try the action was suspended. (b) Prosecution or trial of the action was stayed or enjoined. (c) Bringing the action to trial, for any other reason, was impossible, impracticable, or futile.” ((Id., § 583.340.) “[T]he Legislature has specifically stated that for purposes of that section impossibility, impracticability or futility must be due to causes beyond a party’s control.” (Westinghouse Electric Corp. v. Superior Court (1983) 143 Cal.App.3d 95, 105 (Westinghouse).) Pursuant to Code of Civil Procedure section 583.330, “[t]he parties may extend the time within which an action must be brought to trial pursuant to this article by...written stipulation” and “[b]y oral agreement made in open court, if entered in the minutes of the court or a transcript is made.”

Discussion

As set forth above, the instant action was filed on February 18, 2021. Defendants contend that “[t]rial is currently scheduled for July 15, 2026, representing an elapsed time of five years, four months, and twenty-seven days from filing of the Complaint.” (Mot., 5:2-3.)

A.

Bankruptcy Proceedings

Plaintiffs contend, and

Defendants concede, that a bankruptcy stay was ordered by the Court on April 30, 2021, and this stay lasted for approximately three months until July 30, 2021. Under 11 U.S.C. § 362(a), filing for bankruptcy creates an automatic stay of proceedings. Accordingly, this tolls the five-year deadline from February 18, 2026 to May 18, 2026.

B. Appeal of the Motion to Disqualify Counsel

Plaintiffs also contend that

the action must be stayed for an additional thirteen to fourteen months because of an appeal. The Court granted Plaintiffs’ motion to disqualify counsel on July 30, 2024. Thereafter, on September 20, 2024, Defendants Milton Rasih, George Akopian, and Raju Rasiah filed a notice of appeal. A remittitur was issued on November 6, 2025, where the Court of Appeal affirmed this Court’s decision. Plaintiffs assert that this period of time made bringing the case impossible,

impracticable, or futile because “[w]hen Defendants’ disqualification motion was granted, Plaintiffs’ counsel was removed from the case. The appeal of that ruling created a period during which retaining and working with replacement counsel was in procedural limbo, and during which the case could not realistically be advanced to trial. Plaintiffs did not abandon the case during that period -- they appeared in propria persona, maintained the action, and eventually retained new counsel after the Remittitur issued on November 6, 2025. That thirteen-to-fourteen-month period (September 26, 2024, to November 6, 2025) is excludable under section 583.340(c).”

(Opp., 6:24-7:4.) The Court notes that Plaintiffs misstate who brought the motion to disqualify; according to the record and the Court’s Order, Plaintiffs brought the motion to disqualify Defendants’ counsel, which the Court granted, and Defendants appealed.

In response, Defendants refute Plaintiffs’

assertion that the appeal stayed proceedings or made it impractical to bring the case to trial. Defendants cite *URS Corp. v.*

Atkinson/Walsh Joint Venture (2017)

15 Cal.App.5th 872, 887, where the Court of Appeal held “that an order disqualifying an attorney is automatically stayed by an appeal.” The court also clarified that “ongoing litigation directed toward the resolution of the parties’ respective pleadings is not automatically stayed by this appeal.”

((Id. at

p. 888.) Defendants assert that the legal effect of that case on the instant action is that Feldman, Defendants’ disqualified counsel, “remained defense counsel throughout the appeal under the automatic stay, preserving the status quo. The merits proceedings were not stayed. Plaintiffs could have conducted discovery, prepared trial documents, moved to specially set the case, and alerted the Court to the five-year deadline. Nothing in the law stopped them.” (Reply, 3:15-18.) Moreover, “an appeal from an order regarding disqualification of counsel is ‘unquestionably collateral to the merits of the case,’” so an “appeal does not automatically stay the trial proceedings relating to the merits.” ((*Reed v. Superior Court* (2001) 92 Cal.App.4th 448, 453.)

The Court

finds the case law instructive. Although an appeal of a motion to disqualify counsel stays proceedings, it only stays proceedings on that specific order. This has the effect of preserving the existing state of affairs, so that the potentially disqualified counsel and appealing party may continue to litigate the case without needing to retain replacement counsel. *Reed* and *URS*

Corp. directly refute Plaintiffs' assertion that the action underwent a stay of thirteen to fourteen months pending the outcome of the appeal. Additionally, Plaintiffs contend that the pending appeal made bringing the case to trial impossible, impracticable, or futile, but Plaintiffs fail to demonstrate such an argument to the Court. Accordingly, the Court finds that the time spent waiting for the appeal of the motion to disqualify counsel does not extend the five-year deadline.

C.

Discretionary Dismissal

Plaintiffs'

opposing papers assert that "[t]he adjusted five-year deadline does not expire until 2027," so "[t]he mandatory ground fails." (Opp., 7:18-19.) Plaintiffs thereafter request that the Court deny discretionary dismissal because all relevant circumstances favor trial and present arguments about their diligence in prosecuting the case. However, Plaintiffs base their assertions on only two scenarios that could have stayed the proceedings in this case, which, as stated above, the Court and case law refute that proceedings were stayed for thirteen to fourteen months during the pending appeal. Accordingly, the Court finds that any arguments supporting or refuting discretionary dismissal are inapposite for deciding whether the instant action should be dismissed.

Under

the strict prescription of Code of Civil Procedure

section 583.310, this case must be dismissed because the five-year deadline has passed. Plaintiffs fail to make a showing that events transpired that made

bringing the action to trial "impossible, impracticable, or futile." (Code Civ. Proc., § 583.340, subd. (c).) Although bankruptcy proceedings tolled

the trial deadline to May 18, 2026, this date has passed,

and trial is set for July

15, 2026. Accordingly, this action is

dismissed.

Conclusion

Based on the foregoing, Defendants'

motion to dismiss is GRANTED. Defendants are ordered to file a proposed judgment within ten days of this Order.

Defendants are ordered to
give notice of this Order.

DATED: July 14, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court